

EMPLOYER'S FIRST REPORT OF INJURY OR DISEASE

Fatal Injuries: Employers subject to ch.102, Wis. Stats., must report injuries resulting in death to the Department and to their insurance carrier, if insured, within one day after the death of the employee.

Non-Fatal Injuries: If the injury or occupational illness results in disability beyond the three-day waiting period, the employer, if insured, must notify its insurance carrier within 7 days after the injury or beginning of disability. Medical-only claims are to be reported to the insurance carrier only, not the Department.

Electronic Reporting Requirement: All work-related injuries and illnesses resulting in compensable lost time, with the exception of fatalities, must be reported electronically to the Department via EDI or Internet by the insurance carrier or self-insured employer within 14 days of the date of injury or beginning of disability. Employer may fax claims for fatal injuries to (608) 267-0394.

**Department of Workforce Development
Worker's Compensation Division**
201 E. Washington Ave.
P.O. Box 7901
Madison, WI 53707
Imaging Server Fax: (608) 260-2503
Telephone: (608) 266-1340
<https://dwd.wisconsin.gov/wc>
e-mail: DWDDWC@dwd.wisconsin.gov

*Provision of your Social Security Number (SSN) is voluntary. Failure to provide it may result in an information processing delay.

The Department of Workforce Development (DWD) administers the Worker's Compensation Act, Chapter 102 Wis. Stats. The purpose of this form is to assist with the procurement of information related to or required by Chapter 102. Completion of this form is voluntary and failure to complete said form may result in a delay in the administration of Chapter 102. DWD may use the personally identifiable information (PII) it obtains from you on this form for purposes other than those for which it is being collected.

(Please read the instructions on page 2 for completing this form)

EMPLOYEE	Employee Name (First, Middle, Last) John Andrew Smith		Social Security Number* 123 - 45 - 6789		Sex ☒ M ☐ F		Employee Home Telephone No. (608) 555 - 0134		
	Employee Street Address 742 Parkside Dr		City Madison		State WI		Zip Code 53704		
	Occupation Warehouse Associate								
EMPLOYER	Birthdate 1987-06-22		Date of Hire 2021-09-13		County and State Where Accident or Exposure Occurred? Dane County, WI				
	Employer Name Badger Distribution, Inc.		WI Unemployment Ins. Acct No. SIC123456789		Self-Insured? ☐ Yes ☒ No		Nature of Business (Specific Product) Warehousing and distribution of consumer goods		
	Employer Mailing Address 1500 Commerce Dr		City Sun Prairie		State WI		Zip Code 53590		
	Employer FEIN 39 - 8765432								
	Name of Worker's Compensation Insurance Co. or Self-Insured Employer Secure Insurance Company		Insurer FEIN 26 - 7412589						
WAGE INFORMATION	Name and Address of Third Party Administrator (TPA) Used by the Insurance Company or Self-Insured Employer Midwest Claims Administrators, LLC, 100 E Wisconsin Ave, Suite 2100, Milwaukee, WI 53202		TPA FEIN 39 - 1122334						
	Wage at Time of Injury \$ 27.00		Specify per hr., wk., mo., yr., etc. Per: hr		In Addition to Wages, Check Box(es) if Employee Received:		☐ Meals No. of Meals/wk. ☐ Room No. of Days/wk ☐ Tips Avg. Weekly Amt. \$		
	Is Worker Paid for Overtime? ☒ Yes ☐ No If Yes, After How Many Hours of Work Per Week? 40								
	For the 52 Week Period Prior to the Week the Injury Occurred, Report Below the Number of Weeks Worked in the Same Kind of Work, and the Total Wages, Salary, Commission and Bonus or Premium Earned for Such Weeks.								
	No. of Weeks: 50		Gross Amount Excluding Tips: \$ 49000			If Piece-Work, No. of Hrs. Excluding Overtime:			
			Start Time		Hours Per Day		Hours Per Week		
	Employee's Usual Work Schedule When Injured:		8:30 ☒ AM ☐ PM		8		40		
	Employer's Usual Full-Time Schedule for This Type of Work at Time of Employee's Injury:				8		40		
	Part-Time Employment Information:		Are there Other Part-Time Workers Doing the Same Work With the Same Schedule? ☐ Yes ☒ No If Yes, how many?			Number of Full-Time Employees Doing The Same Type Of Work: 10			
	Injury Date 2024-03-12		Time of Injury 10:20 ☒ AM ☐ PM		Last Day Worked 2024-03-12		Date Employer Notified 2024-03-12		
Date Returned to Work 2024-03-18		☐ Estimated Date of Return							
INJURY INFORMATION	Did Injury Cause Death? ☐ Yes ☒ No		Date of Death		Was This a Lost Time or Other Compensable Injury? ☒ Yes ☐ No		Did Injury Occur Because of:		
							☐ Substance Abuse ☐ Failure to Use Safety Devices ☐ Failure to Obey Rules		
	Was Employee Treated in an Emergency Room? ☒ Yes ☐ No Was Employee Hospitalized Overnight as an In-Patient? ☐ Yes ☒ No								
	Name and Address of Treating Practitioner and Hospital: Dr. Emily Chen, MD, UW Health East Madison Hospital, 4602 Eastpark Blvd, Madison, WI 53718. Phone:								
	Case Number from the OSHA Log: 2024-0312-01 608-555-0172								
Injury Description - Describe Activities of Employee When Injury or Illness Occurred and What Tools, Machinery, Objects, Chemicals, Etc. Were Involved. Employee was transferring boxed inventory from a pallet to shelving in aisle 12 using a manual pallet jack and a step stool. While lifting a 35-lb box, he stepped onto a wet spot on the concrete floor and slipped, contacting the metal edge of the rack with his right forearm and twisting his lower back. Items involved: manual pallet jack, corrugated boxes, metal storage racking, step stool, safety gloves.									
What Happened to Cause This Injury or Illness? (Describe How The Injury Occurred) A condensation leak near the cooler created a wet area on the floor. While turning with a box in hand, the worker slipped, lost balance, and fell against the shelving, resulting in a cut to the right forearm and a strained lower back.									
What Was The Injury or Illness? (State the Part of Body Affected and How It Was Affected) Acute lumbar strain with muscle spasm and reduced range of motion; 3-cm laceration to the right forearm requiring six sutures. No fractures per X-ray.									
Report Prepared By Laura Martinez		Work Phone Number (608) 555 - 0100		Position HR Manager			Date Signed		

EMPLOYER AND INSURANCE CARRIER INSTRUCTIONS

The employer must complete all relevant sections on this form and submit it to the employer's worker's compensation insurance carrier or third party claim administrator within seven (7) days after the date of a work-related injury which causes permanent or temporary disability resulting in compensation for lost time. The employer's insurance carrier or the third-party claim's administrator may request that this form also be used to immediately report any injury requiring medical treatment, even though it does not involve lost work time.

For any work injury resulting in a **fatality**, the employer must also submit this form directly to the Department of Workforce Development **within 24 hours of the fatality**.

An employer exempt from the duty to insure under s. 102.28, Wis. Stats., and an insurance carrier administering claims for an insured employer are required to submit this form to the Department of Workforce Development within 14 days of the date of work injury.

MANDATORY INFORMATION

In order to accurately administer claims, each of the following sections of this form must be completed. The First Report of Injury will be returned to the sender if the mandatory information is not provided.

Employee Section: Provide all requested information to identify the injured employee. If an employee has multiple dates of employment, the "Date of Hire" is the date the employee was hired for the job on which he or she was injured.

Employer Section: Provide all requested information to identify the injured worker's employer at the time of injury. Provide the name and Federal Employer Identification Number (FEIN) for the insurance carrier or self-insured employer responsible for the worker's compensation expenses for this injury. Also identify the third party claim administrator, if one is used for this claim.

Wage Information Section: Provide the information requested regarding the injured employee's wage and hours worked for the job being performed at the time of injury.

Injury Information Section: Provide information regarding the date and time of injury. Provide a detailed description of the injury, including part of the body injured, the specific nature of the injury (i.e., fracture, strain, concussion, burn, etc.) and the use of any objects or tools (i.e., saw, ladder, vehicle, etc.) that may have caused the injury. Provide the name of the person preparing this report and the telephone number at which they may be reached, if additional information is needed. This form was designed to include information required by OSHA on form 301. If this section is completed and retained, the employer will not have to complete the OSHA 301 form.